

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CHARLES S TREAT
HEARING DATE: 06/04/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1.	9:00 AM	CASE NUMBER: C26-00046
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CASE NAME: STEVEN SMITH VS. JESSICA ZAPRUDER

*FURTHER CASE MANAGEMENT CONFERENCE
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FILED BY:

<u>*TENTATIVE RULING:*</u>

See Line 12 below. The CMC is continued to October 30, 2026, at 8:30 a.m. The parties should be moving in the direction of mediation if they do not settle on their own. In the event that the tentative ruling on Line 12 is contested, counsel should also appear (Zoom okay) for CMC on this hearing date.

2.	9:00 AM	CASE NUMBER: C22-02775
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CASE NAME: JEFFREY TUBBS VS. CALIFNORA-NEVADA ANNUAL CONFERENCE OF THE UNITED METHODIST CHURCH, ET AL.

HEARING IN RE: APPLICATION PERMITTING JOEL M. WALKER, ESQ. TO APPEAR AS COUNSEL PRO
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HAC VICE FOR PLAINTIFF
FILED BY: TUBBS, JEFFREY
TENTATIVE RULING:

The pro hac vice application of Joel Walker is **approved**.

3. 9:00 AM CASE NUMBER: C22-02776
CASE NAME: JOHN RC ROE VS. DOES 4-100
HEARING IN RE: APPLICATION PERMITTING JOEL M. WALKER, ESQ. TO APPEAR AS COUNSEL PRO
HAC VICE FOR PLAINTIFF
FILED BY: ROE, JOHN RC
TENTATIVE RULING:

The pro hac vice application of Joel Walker is **approved**.

4. 9:00 AM CASE NUMBER: C23-02106
CASE NAME: SANTIAGO MORALES VS. DWELLEY FAMILY FARMS, LLC
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

Plaintiff Santiago Morales moves for final approval of his class action and PAGA settlement with defendant Dwelley Family Farms, LLC. He also moves for approval of his attorney's fees, litigation costs, administration costs, and representative payment.

Since preliminary approval was granted, the administrator has mailed notices to 420 class members. No objections have been received, and only one class member opted out.

The motion is **granted**.

The original complaint was filed by Plaintiff on August 23, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. A First Amended Complaint adding PAGA claims (based on a notice to the LWDA given on August 23, 2023), was filed on October 26, 2023. A Second amended Complaint was filed on March 21, 2024, and remains the operative complaint.

The settlement will create a gross settlement fund of \$321,860. The class representative payment to plaintiff will be \$7,500. Attorney's fees will be \$107,286.67 (one-third of the settlement). Litigation costs will be \$20,000. (Counsel actually incurred slightly more than that but have limited their claim to what was stated in the settlement and the preliminary approval.) The settlement administrator's costs will be \$7,250, somewhat less than estimated, resulting in a very slight increase in the average recovery. PAGA penalties are \$15,000, resulting in a payment of \$11,250 to the LWDA and \$3,750 to the aggrieved employees. The net amount paid directly to the class members will be about \$164,823. The fund is non-reversionary. Based on the estimated class size of 388, the average net payment for each class member is approximately \$419.

The proposed settlement will certify a class of all current and former non-exempt employees

employed by Defendant during the class period.

The class members will not be required to file a claim. Funds will be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The proposed settlement provides that checks undelivered or uncashed 180 days after mailing will be voided, and the funds will be provided to the State Controller's Unclaimed Property Fund.

The settlement contains release language covering all "those claims arising out of or related to the allegations set forth in the operative complaint[.]" (Settlement, Par. 1.34.) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (Id., quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken, and a data expert was retained for mediation. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. The Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable,

and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees.” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “the court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “where the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney Fees and Other Costs

Plaintiffs seek one-third of the total settlement amount as fees, relying on the “common fund” theory, or §[. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Accordingly, plaintiffs have provided information concerning the lodestar fee amount. They estimate the lodestar at \$22,774, representing an implied multiplier of 2.5. No adjustment from the one-third fee is necessary. The attorney’s fees are reasonable and are approved.

The requested representative payment of \$7,500 for the named plaintiff was deferred until this final approval motion. Criteria for evaluation of such requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07. Plaintiff has provided a declaration in support of [his request. He points out that she executed a broader release than the class as a whole, but does not identify any particular claims of value that he may have. He also risks damage to her reputation and more difficulty in obtaining employment. The representative payment is approved.

Litigation costs of \$20,000 (mostly mediation and filing fees) are reasonable and are approved.

The settlement administrator’s costs of \$7,250 are reasonable and are approved.

D. Discussion and Conclusion

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval. The allocation of PAGA penalties among the aggrieved employees (based on pay periods) is reasonable.

The motion is granted.

Counsel are directed to prepare an order reflecting this entire tentative ruling and the other findings

in the previously submitted proposed order and a separate judgment.

The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, to be determined in consultation with the Department's clerk by phone. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

5. 9:00 AM CASE NUMBER: C24-01636
CASE NAME: SOPHIA AGUIRRE VS. SHIFT4 PAYMENTS, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: AGUIRRE, SOPHIA MARIE
TENTATIVE RULING:

Plaintiff Sophie Aguirre moves for preliminary approval of her class action and PAGA settlement with defendant Shift4 Payments, LLC. The motion is **granted**.

Background and Settlement Terms

Defendant Shift4 Payments is in the business of providing merchant services to sales businesses. Plaintiff worked there as a technical support representative, a non-exempt position.

The original complaint was filed on June 21 2024. It was amended on September 2, 2025 to add PAGA claims.

The settlement would create a gross settlement fund of \$142,500. The class representative payment to the plaintiff would be \$7,500. Attorney's fees would be \$47,500 (one-third of the settlement). Litigation costs would not exceed \$15,000. The settlement administrator's costs are estimated at \$5,000. PAGA penalties would be \$92,500, resulting in a payment of \$60,125 to the LWDA. The net amount paid directly to the class members would be about \$50,000 for the class, and \$32,375 on the PAGA claims. The fund is non-reversionary. There are an estimated 40 class members, and 26 aggrieved PAGA employees. The number of aggrieved employees for PAGA purposes is smaller, because the starting date of the relevant period is later. Based on the estimated class size, the average net payment for each class member is approximately \$1,250, and the average net PAGA payment will be \$1,245. The individual payments will vary considerably, however, because of the allocation formula prorating payments according to the number of weeks worked during the relevant time.

The entire settlement amount will be deposited with the settlement administrator within 30 days after the effective date of the settlement.

The proposed settlement would certify a class of all current and former non-exempt employed at Defendants' California facilities between June 21, 2020 and September 2, 2025. For PAGA purposes, the period covered by the settlement is April 17, 2023, and September 2, 2025.

The class members will not be required to file a claim. Class members may object or opt out of the

settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

A list of class members will be provided to the settlement administrator within 14 days after preliminary approval. Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Settlement checks not cashed within 180 days will be cancelled, and the funds will be directed to the Controller's Unclaimed Property Fund.

The settlement contains release language covering all claims and causes of action, alleged or which could have reasonably been alleged based on the allegations in the operative pleading, including a number of specified claims. Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ("A court cannot release claims that are outside the scope of the allegations of the complaint.") "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal discovery was undertaken, resulting in the production of substantial documents. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel also has provided an analysis of the case, and how the settlement compares to the potential value of the case, after allowing for various risks and contingencies. For example, much of plaintiff's allegations centers on possible off-the-clock work, including missed or skipped meal breaks and rest breaks. Defendant, however, pointed out that its formal policies prohibit off-the-clock work, and asserted that it would have had no knowledge of employees beginning work before punching in or continuing after punching out. Further, it argued that it was required to make meal and rest breaks available, but not required to ensure that they be taken, so long as no employer policy prevented or discouraged taking such breaks. As to unreimbursed employee expenses (such as cell phone use, mileage, and masks), plaintiff would have been called on to show that such expenses were in fact incurred, were reasonably necessary to job performance, and were unreimbursed. Furthermore, the fact-intensive character of such claims would have presented a serious obstacle to class certification.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code § 2699(e)(2) (PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.")) Moreover, recent decisions may make it difficult for PAGA plaintiffs to recover statutory penalties, as opposed to actual missed wages. (See, *e.g.*, *Naranjo v. Spectrum Security Services, Inc.* (2023) 88 Cal.App.5th 937; but see *Gola v. University of San Francisco* (2023) 90 Cal.App.5th 548, 566-67.)

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

A. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees”. (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “The court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “Where the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

B. Attorney Fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however,

the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$7,500 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-07.

C. Discussion and Conclusion

The Court finds that the settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

Counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. Five percent of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

6. 9:00 AM CASE NUMBER: C24-02031
CASE NAME: LEIGHA SCHARSCH VS. VICI COLLECTION, LLC
***HEARING ON MOTION IN RE: COMPLIANCE WITH PAGA SETTLEMENT SET BY DEPARTMENT**
FILED BY:
TENTATIVE RULING:

The final report on disbursement is **approved**. The remaining uncashed funds shall be deposited with the Unclaimed Property Fund.

7. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM KATHLEEN**
CABALLERO TO FORM INTEROGS, SET 1
FILED BY: FREEDOM FOREVER, LLC
TENTATIVE RULING:

Defendant Freedom Forever has filed this motion to compel further responses to form interrogatories from plaintiff Caballero. No opposition to the motion has been filed. However, last week Freedom Forever filed a notice of bankruptcy, which operates to stay all proceedings in this state-court case. The motion is therefore taken **off calendar**.

8. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM KATHLEEN VEGA TO**
FORM INTEROGS, SET 1
FILED BY: FREEDOM FOREVER, LLC
TENTATIVE RULING:

Defendant Freedom Forever has filed this motion to compel further responses to form interrogatories from plaintiff Vega. No opposition to the motion has been filed. However, last week Freedom Forever filed a notice of bankruptcy, which operates to stay all proceedings in this state-court case. The motion is therefore taken **off calendar**.

9. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM KATHLEEN VEGA TO SPECIAL INTEROGS, SET 1**
FILED BY: FREEDOM FOREVER, LLC
TENTATIVE RULING:

Defendant Freedom Forever has filed this motion to compel further responses to special interrogatories from plaintiff Caballero. No opposition to the motion has been filed. However, last week Freedom Forever filed a notice of bankruptcy, which operates to stay all proceedings in this state-court case. The motion is therefore taken **off calendar**.

10. 9:00 AM CASE NUMBER: C25-02263
CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: STAY UNLAWFUL DETAINER**
FILED BY: GODDARD, THOMAS JOSEPH
TENTATIVE RULING:

Before the Court is Plaintiff Thomas Goddard's Motion for Stay of Unlawful Detainer Pending Resolution of Discrimination Claims. Plaintiff's Motion is **denied as moot**.

Factual Allegations and Procedural Background

On August 15, 2025, Plaintiff filed the Complaint in this instant matter which is a dispute between a tenant (Plaintiff) and his landlord (Defendants).

On November 17, 2025, Defendant 1910 Apartments initiated an unlawful detainer action against Plaintiff (case No. MS25-0977). On January 26, 2026, the court entered a default judgment against Plaintiff. Notice of entry of judgment was sent on January 28, 2026. A writ of possession was issued on January 30, 2026. Plaintiff filed a notice of appeal on February 17, 2026. A stay of execution was issued, staying the order through February 27, 2026. The appeal was dismissed on April 6, 2026.

Defendant's counsel indicates that the Sheriff's department completed a lockout of the Property and that as of April 9, 2026, Plaintiff has been removed all his personal items from the Property and has vacated the premises.

Standard

"A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141 quoting *People v. Bell* (1984) 159 Cal.App.3d 323, 329.) As the U.S. Supreme Court "explained, 'the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.'" (*Ibid.* quoting

Landis v. North American Co. (1936) 299 U.S. 248, 254.) “Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (*Freiberg v. City of Mission Viejo* (1995) 33 CalApp.4th 1484, 1489.)

Analysis

As outlined above, the UD action underlying this Motion has been completely resolved. Accordingly, there is nothing left to stay. In other words, the current Motion is moot. A case becomes moot when “the question addressed was at one time a live issue in the case,” but has lost its life “because of events occurring after the judicial process was initiated.” (*Younger v. Superior Court* (1978) 21 Cal.3d 102, 120.) “[T]he duty of this court ... is to decide actual controversies ... and not to give opinions upon moot questions or abstract propositions....” (*Consol. etc. Corp. v. United A. etc. Workers* (1946) 27 Cal.2d 859, 863.)

As the underlying UD action has been completely resolved, Plaintiff has already appealed that decision – which was dismissed, and Plaintiff has already been removed from and vacated the Property, there is no longer any case to be stayed. Arguably the motion to stay the UD action ought to have been filed in the UD action. But whether filed there or here, there is no longer any live motion requiring decision.

Conclusion

Plaintiff’s motion to stay the unlawful detainer action, case no. MS25-0977, is **denied as moot**.

11. 9:00 AM CASE NUMBER: C25-03663
CASE NAME: CAILYN USHER VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
FILED BY: SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant school district moves to set aside its default, which apparently resulted from a mix-up of internal communications on the defense side about appointing counsel to represent the district. The motion is unopposed, and it is **granted**. Defendant may file and serve an answer by June 18. This should have been handled by stipulation, as it appears that plaintiff was willing to so stipulate with only minor and conventional added details.

12. 9:00 AM CASE NUMBER: C26-00046
CASE NAME: STEVEN SMITH VS. JESSICA ZAPRUDER
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: ZAPRUDER, JESSICA
TENTATIVE RULING:

Before the Court is the Zapruder defendants’ demurrer to plaintiff Smith’s First Amended Complaint for (1) negligence (against Jessica Zapruder and Michael Zapruder), (2) breach of contract (against Jessica Zapruder and Michael Zapruder), and (3) breach of contract (against Marjorie Zapruder).

For the following reasons, the demurrer is **sustained with leave to amend**.

Brief Factual Background

Defendants Jessica Michaelson Zapruder and Michael Zapruder leased Plaintiff's property at 421 Kahrs Avenue in Pleasant Hill. Plaintiff alleges that the premises were destroyed on July 12, 2024, and seeks to recover losses (in excess of insurance recovery), alleging negligently operated an open-flame grill in a prohibited location. By his complaint, Plaintiff seeks damages for unreimbursed repair costs, lost rental income, investigation costs, public adjuster fees, and other out-of-pocket expenses.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

"What we've got here is failure to communicate." (Strother Martin, Cool Hand Luke.) More specifically, what we have here is an apparent breakdown in what should have been the meet-and-confer concerning the FAC and this demurrer.

The FAC goes on at some length, in generalized legal terms, about prohibitions on open-flame cooking, storage requirements, and so on, without reference to any particular operative facts of this loss. As far as allegations going to the actual *facts* of what did or didn't happen as to this fire, however, the allegations consist entirely of:

1. Defendants "operat[ed] an open-flame grill in prohibited location, creating a fire hazard", at an unspecified time, in an unspecified location, with unstated consequences.
2. "A fire ignited and destroyed the premises...."

That's it. Can you spot what isn't there? What isn't there is:

1. Any allegation that the fire was actually *caused* by an open-flame grill. For all the FAC's allegations say, the fire could have been started by a gas leak, a brush fire, a lightning strike, or a falling meteorite.
2. Any allegation of *when* defendants operated their open-flame grill, or whether the grill in question was operated by someone else on the date in question.
3. Any allegation of *where* defendants operated their open-flame grill.
4. Any allegation of *how* defendants operated their open-flame grill. How, specifically, was it dangerous, and how did it cause a fire that burned down the premises?

One may indulge the assumption that, whether or not any safety ordinances or lease terms were violated, a burning grill does not usually result in setting fire to a building in the absence of some carelessness or negligence. But that is informed guesswork, not allegation. The opposition brief says that is so (though still not specifying what happened exactly). But the FAC doesn't.

The Court does not have access to the substance of the attorneys' meet-and-confer. What should have happened, however, is defense counsel pointing out the absence of cause-and-effect allegations; and plaintiff's counsel saying, "I see your point, I can fix that" -- and then doing so.

In the meantime, however, the absence of allegations as to what caused the fire, and why that is defendants' fault, are fatal to all of these causes of action. Even assuming that the grill operation was in violation of either the lease or the government regulations or both, that still isn't a viable damages cause of action for either negligence or breach of contract, unless that violation actually *caused* the harm alleged. Accordingly, the demurrer is **sustained with leave to amend**.

A separate issue arises as to the potential liability of Marjorie Zapruder as a co-signing guarantor. That issue remains open. But until we have a better pleaded understanding of what the tenant defendants are alleged to have done in breach of the lease and whether that did or didn't result in plaintiff's loss, we cannot come to grips with whether those alleged breaches do or don't fall within the scope of Marjorie's guaranty.

Plaintiff may file and serve a second amended complaint by June 26, 2026.

13. 9:00 AM CASE NUMBER: MSC16-00996
CASE NAME: ELY VS. WALNUT CREEK ASSOCIATES 2 [PAGA]
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY:
TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by defendants Walnut Creek Associates 2, Inc. (DBA Walnut Creek Honda), Gordon S. Walton, Steve Sklavos and David Trzesniewski. The motion is **denied**, as set forth below.

Trial Management Going Forward

If this tentative ruling is contested, the attorneys should also attend (Zoom okay) prepared to discuss the timing and procedure for the upcoming court trial (possibly obviating the need for the pretrial conference now calendared). If there is no hearing on June 4, the attorneys should nevertheless be prepared for same discussion at the pretrial date.

The Court understands that there is at least informal agreement to submit the case to "trial on the papers", a welcome development. Given the concessions and debate found in the briefs on this motion, it may be that the parties are able to agree to much in advance, both legally and factually. Moreover, it may be economical for the parties to ascertain the proper measure and time period for damages – by stipulation, or by briefing and decision – before assembling and submitting bulky evidence books of past-year employment records. (Or, better yet, stipulating to the bottom-line figures ascertained from the employee records.)

The details and scheduling for the trial briefing, however, remain unsettled. In this respect, the Court draws attention to the fact that the nominal trial date, June 22, is in the last week of the service period of the present Temporary Assigned Judge (Judge Treat), and hence it will not be feasible for the Judge sitting on the trial date to carry the trial through to completion. Thus, the case likely calls for an agreed briefing schedule carrying into the time when Judge Campins is back.

I. Background

Defendant Walnut Creek Associates 2, Inc. employed plaintiff, Landen Ely, as an automobile technician at its car dealership. On May 11, 2016, plaintiff mailed his notice under the Labor Code Private Attorneys General Act of 2004 (Lab. Code, § 2698 *et seq.*, hereafter “PAGA”) to the Labor and Workforce Development Agency (LWDA) and defendants. (Separate Statement of Undisputed Material Fact, hereinafter “SSUMF,” Fact. No. 1; Plaintiff’s Response to SSUMF, hereinafter “plaintiff’s response” or “PAF,” No. 19.) The notice, dated May 11, 2026, states:

This investigation request and notice of California Labor Code violations concerns the systematic failure by Walnut Creek Honda to pay current and former California non-exempt employees in conformance with the California Labor Code and Wage Orders. At the core of Walnut Creek Honda violations is a policy of failing to keep accurate time and payroll records; requiring, suffering or permitting employees to perform unpaid work outside their scheduled work time; failing to pay for downtime between piece rate employment, failing to pay premium wages for all hours worked in excess of eight (8) hours and 12 hours in a day and in excess of eight (8) hours on any seventh day of a workweek; using improper federal averaging in lieu of required California calculations regarding piece rate payments; failing to pay 1.5 times the regular rate for overtime work, refusing to authorize and permit rest periods or to provide premium wages in lieu thereof; failing to provide PAID rest periods pursuant to the flag rate system which compensates employees only for work provided, failing to provide timely, complete and uninterrupted meal periods free of duty and auto-deducting wages for meal periods not provided or taken; failing to pay rest and meal period premiums to which employees are entitled for being denied rest and meal periods; requiring employees to purchase tools and garments necessary for work without reimbursement; failing to provide accurate wage statements and failing pay of all wages owed upon separation from employment. These violations are a uniform policy applied to all non-exempt workers at Walnut Creek Honda.

[...]

If no action is taken within 30 days, we will assume that we may pursue this action under the theories described above [...].

Plaintiff then filed this action on May 24, 2016, alleging a single cause of action under PAGA. The cause of action enumerates the following statutory violations, “among others:” Labor Code, §§ 201, 202, 203, 206, 223, 226, 226.3, 226.6, 226.7, 226.8, 256, 510, 512, 558, 1174, 1185, 1194.2, 1197, 1197.1, 2699 *et seq.*, and applicable IWC Wage Orders. (Complaint, ¶18.)

With respect to exhaustion of remedies, plaintiff states that the PAGA notice requirements “will have been satisfied” prior to service of the complaint, and that the complaint would be amended “to confirm completion.” (Complaint, ¶42.) There is no record of plaintiff having amended the complaint. Accordingly, the complaint fails to allege complete compliance with the Labor Code section 2699.3 notice and exhaustion requirements. (SSUMF Fact Nos. 2 and 4, and plaintiff’s response.) Nevertheless, the LWDA has not sent any notice to plaintiff or intervened in this action. (PAF, Fact No. 19, and Defendants’ Response to Plaintiff’s Separate Statement, hereinafter “defendants’ response,” filed May 22, 2026.)

Defendants filed an initial answer on September 28, 2016 and a first amended answer on January 5, 2017, both of which included an affirmative defense that plaintiff failed to meet PAGA’s

necessary filing and notice requirements. (SSUMF Fact No. 3, and plaintiff's response.) Defendants moved, unsuccessfully, to compel arbitration. For various reasons, including the pending appeal of the order denying the motion to compel arbitration, as well as various developments in the law with respect to arbitration and PAGA claims, this case remained stayed until October of 2024. (See Minute Order, filed October 10, 2024.)

II. Motion and Opposition

Defendants now move for summary judgment or summary adjudication in the alternative, arguing that plaintiff lacks standing since he failed to exhaust administrative remedies, that unpaid wages cannot be recovered under PAGA, that the penalties sought can only go back one year before the PAGA notice and plaintiff seeks three years, and the recent case of *Mora v. C.E. Enters., Inc.* (2025) 116 Cal.App.5th 72 ("*Mora*") bars plaintiff's entire theory of liability. Defendants list nine issues for adjudication, each related to these arguments.

In support of the motion, defendants provide a declaration from counsel which attaches excerpts and exhibits from the deposition of Alan Yun, the Person Most Qualified who testified on behalf of Walnut Creek Honda, a declaration of Alan Yun, and a request for judicial notice attaching plaintiff's PAGA notice. As required with a motion for summary judgment, defendants also provide a statement of material facts they contend are undisputed.

Plaintiff opposes the motion, except with respect to the claims pursuant to Labor Code § 558, § 226.8, and § 2810, claims plaintiff concedes "may be struck." (Memorandum of Points and Authorities in Support of Opposition, 19, fn. 5.) Plaintiff argues he exhausted his remedies and, in any event, defendants "waived" the exhaustion defense. He also contends PAGA permits him to recover three years of penalties pursuant to Labor Code section 203. Finally, plaintiff argues the compensation system was not legal, and that *Mora* is not controlling. In support of the opposition, plaintiff responds to defendants' SSUMF and also submits his own additional facts (PAF, Fact Numbers 19-32).

With their reply defendants respond to the plaintiff's additional facts and argue plaintiff fails to meet his burden to overcome summary judgment.

III. Evidentiary Matters

No evidentiary objections were filed. Defendants request judicial notice of the complaint, their answer, and their amended answer, as well as the plaintiff's PAGA notice, a copy of which is attached to the Volume of Evidence in Support of the Motion. The request is unopposed and is **granted**.

IV. Standard

To be entitled to judgment as a matter of law, a defendant must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) To be entitled to summary adjudication, a moving party must show that it prevails on "one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty." (Code Civ. Proc., § 437c(f)(1).) Summary adjudication "shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (*Ibid.*) To obtain summary judgment, as opposed to summary adjudication, a defendant must show conclusively that all of the plaintiff's causes of action or legal theories fail as a matter of law. (See *Jimenez v. Protective Life Ins. Co.* (1992) 8 Cal.App.4th 528, 534.) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all

procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).)

A defendant moving for summary judgment or adjudication can meet its burden by demonstrating one or more elements cannot be established, or by showing a complete defense. (Code of Civ. Proc., § 437c, subd. (o).) The scope of the moving party's initial burden is "framed by the pleadings." (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102.) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists. (Code of Civil Procedure § 437c, subd. (p)(2).) Although the burden of production may shift, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.)

V. Discussion

A. MSJ (Issues 1-2: Failure to Exhaust Administrative Remedies by Prematurely Filing Suit)

Defendants argue that plaintiff failed to exhaust his administrative remedies. Defendants assert, therefore, that the Court lacks jurisdiction and summary judgment is warranted.

A PAGA plaintiff must give written notice to the Labor and Workforce Development Agency ("LWDA") of the specific provisions of the Labor Code alleged to have been violated, including the facts and theories to support the alleged violation. Thereafter, if the agency fails to provide timely or any notification that it will investigate the allegations, the aggrieved employee may commence the PAGA action after waiting the required number of days. (Labor Code, § 2699.3 (a)(2)(A); *Esparza v. Safeway, Inc.* (2019) 36 Cal.App.5th 42, 59; *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 81.)

The version of Labor Code § 2699.3, subdivision (a) in effect at the time of plaintiff's notice here stated as follows (emphasis added):

A civil action by an aggrieved employee pursuant to subdivision (a) or (f) of Section 2699 alleging a violation of any provision listed in Section 2699.5 shall commence *only after the following requirements have been met:*

(1)The aggrieved employee or representative shall give written notice by certified mail to the Labor and Workforce Development Agency [...].

(2)(A) The agency shall notify the employer and the aggrieved employee or representative by certified mail that it does not intend to investigate [...]. Upon receipt of that notice *or if no notice is provided within 33 calendar days of the postmark date of the notice* given pursuant to paragraph (1), the aggrieved employee may commence a civil action pursuant to Section 2699.

The notice requirement has been found to be "a condition of suit," without which an employee cannot bring a PAGA action. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 545.) Here, plaintiff did provide the LWDA notice, but failed to wait the requisite number of days (33) before filing suit. The notice here was sent on May 11, 2016 and plaintiff filed suit just 13 days later on May 24th. This was premature, a fact not in dispute.

Defendants argue this issue is dispositive, citing several cases including *Caliber Bodyworks, Inc. v. Superior Court*, wherein the appellate court found the trial court should have sustained the defendant's demurrer due to the plaintiffs' failure to plead compliance with PAGA's prefiling notice requirements. (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 383, overruled

on other grounds by *ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175, 196, fn. 8.)

Plaintiff does not address *Caliber*, but the Court notes there is some grounds for distinction given that plaintiff Ely here did plead partial compliance, if not complete compliance, with the notice requirements. Ely's complaint states, in relevant part:

42. The pre-lawsuit notice requirements set forth in Labor Code § 2699.3, including written notice by certified mail to .all DEFENDANTS and to the Labor and Workforce Development Agency detailing the Labor Code and IWC Wage Order violations averred herein, will have been satisfied by PLAINTIFF prior to service of this Complaint. PLAINTIFF will amend his Complaint at that time to confirm completion.

In *Caliber Bodyworks, Inc.*, plaintiffs' "operative complaint [did] not mention the [PAGA]." (*Caliber, supra*, 134 Cal.App.4th at 370.) The Court concluded that, at least on demurrer, plaintiffs' failure to plead compliance with the Labor Code § 2699.3(a) administrative prerequisites to filing suit was fatal to the PAGA claims. (*Caliber*, at 381-382.) While the court in *Caliber* recognized that, given the posture there (on demurrer), and statutory provisions relating to amendment, that plaintiff would be able to seek leave to amend after having complied with the LWDA. (*Id.* at 383, fn.18.)

There is little California authority on point, but notably, neither side here has cited the relevant and recent decision in *Brown v. Dave & Buster's of California, Inc.* (2025) 116 Cal.App.5th 164. There, the Second District Court of Appeal addressed the question of how to construe premature filing of a PAGA lawsuit. In that case, the trial court granted an employer's motion for judgment on the pleadings based on claim preclusion. Plaintiff Brown's PAGA suit followed a final judgment on Andrade's PAGA suit. Accordingly, the employer seeking to invoke claim preclusion took the position that the prior PAGA judgment was *valid*, and premature filing was *not* a substantial defect, while the employee (Brown) sought to *undermine* the judgment's validity so that her suit would not be barred.

The *Brown* court stated, "only one issue is before us: did Andrade's [the first PAGA plaintiff's] failure to adhere strictly to the 65-day waiting period for her amended claims defeat Buster's [employer's] claim preclusion argument?" The *Brown* court went on to discuss federal district court cases which have taken a permissive approach to the exhaustion requirements, overlooking a plaintiff's failure to plead exhaustion based on the lack of any reason to "punish plaintiffs" for acting too quickly. (*Brown, supra*, 116 Cal.App.5th at 171.) While the federal cases are not binding here, they appear to generally support the position that the prematurity defect does not bar suit.

The *Brown* court discussed the policy of substantial compliance, its application with respect to the Government Claims Act, and found that it also applied on the facts in *Brown*. (*Brown, supra*, 116 Cal.App.5th at 172 ["Andrade's failure to wait 65 days was a harmless defect."].)

While plaintiff's waiver argument misses the mark (waiver involves intentional relinquishment or abandonment of a known right, but defendants have done nearly nothing except seek to compel arbitration here), he is correct to point out that this case has been pending (albeit stayed) for almost ten years and the LWDA has never intervened. Accordingly, the Court finds strict compliance with the exhaustion requirements was excused.

Defendants have not met their burden to show entitlement to judgment as a matter of law. Accordingly, while the facts underlying summary judgment are not in dispute (see SSUMF Fact Nos. 1-4, and plaintiff's response), the motion must be denied on Issues 1-2.

B. Motion for Summary Adjudication (Issues 3-9)

As noted above, to be entitled to summary adjudication, a moving party must show that it prevails on “one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty.” (Code Civ. Proc., § 437c (f)(1).) Summary adjudication “shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (*Ibid.*) Here, defendants seek adjudication as to certain aspects of plaintiff’s one cause of action.

Issue 3 seeks to limit the statutes in question to those mentioned in the PAGA notice. Issue 4 seeks to prohibit plaintiff from raising misclassification of employees. Issue 5 seeks to eliminate certain damages because the statutory basis is inapplicable to this case. Issue 6 asserts plaintiff cannot recover any penalties for violations of Labor Code section 558 based on California Supreme authority barring the claim. Issue 7 relates to the one-year time limits for PAGA penalties. Finally, issues 8 and 9 both target the time periods during which defendants had certain payment plans in place.

Defendant would prevail on several of these issues given the correct procedural posture. Indeed, plaintiff even concedes some of the points in the opposition (issue 5, for example). Still, the questions are better suited for motion in limine, motion to strike, or stipulation. None of these issues 3-9 qualifies as completely disposing of a cause of action in conformity with Code of Civil Procedure, section 437c(f). Accordingly, summary adjudication and summary judgment must be denied.

14. 9:00 AM CASE NUMBER: N25-2451

CASE NAME: CLAIM OF:ALLISON HARVEY

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

The proposed minor’s compromise is **approved**.

15. 9:01 AM CASE NUMBER: C25-01439

CASE NAME: MICO BARGO VS. JORDAN SPIEGEL

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION PROPOUNDED TO DEFENDANT JORDAN SPIEGEL**

FILED BY: BARGO, MICO

TENTATIVE RULING:

In this motor-vehicle-accident case, plaintiff moves to compel further responses to several requests for production. The motion is **granted in part and denied in part**.

Preliminary Points

Defendant objects that plaintiff has not met the requirement of meeting and conferring. Whether or not a live or telephonic conference was required (the timing is ambiguous), however, plaintiff has provided detailed meet-and-confer letters that adequately cover the disputes, and defendant did not respond substantively to them. It thus appears that if anyone is flunking the spirit of this requirement, it may be defendant, not plaintiff.

The Court also notes that defendant has not provided a responsive Separate Statement as required.

RFP 15

This request calls for production of defendant's cell phone records for the time of one hour prior to the accident until three hours after the accident. Besides some transparent makeweight objections, defendant responds that she was not using her cell phone at the time.

If that's true, then there is nothing to be learned from production of phone records. However, plaintiff is correct that he is not required to just take defendant's word for it. The records would establish whether defendant is telling the truth about not being on the phone.

However, plaintiff does not respond to defendant's overbreadth point. It is clearly relevant whether defendant was using her phone at, or immediately prior to, the time of the accident. But plaintiff offers no theory of relevance for calls or texts up to an hour before the accident, let alone for three hours after it.

Defendant must produce relevant cell phone records covering the time from ten minutes before the accident to ten minutes after the accident.

RFPs 16 and 19, and the Privilege Log

These requests call for documents relating to communications between defendant and her carrier, or relating to insurance claims concerning this accident. Defendant produced only correspondence between the carrier and plaintiff – not between the carrier and defendant. Defendant's opposition tacitly concedes that this is unresponsive. But defendant correctly points out that producing documents that weren't called for, doesn't establish whether or not plaintiff is entitled to documents that were called for.

Defendant does not try to argue that any part of these document categories would be undiscoverably irrelevant. It objects on grounds of attorney-client privilege and work product (in addition to other asserted "privileges" that do not appear to exist in California).

It may possibly be that there are some privileged or work-product documents among these categories. But there are almost certainly other documents in the categories that are not so protected.

Thus, the issue on these really comes down to the privilege log. The Court agrees that dicta in the case law appear, at least in passing, to call for specific dates for specific documents, though that particular detail wasn't really at issue there. But the real problem here isn't with the dates; it's with the extremely cursory and general description of the substance of the documents. It is simply not possible to ascertain from the privilege log what documents might be protected (and on what basis), and what documents are not.

The Court accordingly deems any privileges that defendant might have properly made as to these documents to have been waived by facially insufficient description in the log. Defendant must produce all responsive documents. The only exception is for direct communications between

defendant and her attorneys, on which the carrier happened to be copied.

Defendant must produce responsive documents, and serve a verified response attesting to that full production, by June 26.

The Court awards sanctions in the amount of \$1,000, payable within 30 days by defendant's counsel to plaintiff's counsel.